



CHAPTER xxi.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to the Aberdeen Market Company. [25th June 1912.] A.D. 1912.

WHEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict. c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation of Order in schedule.

2. This Act may be cited as the Aberdeen Market Company Order Confirmation Act 1912. Short title.

A.D. 1912.

SCHEDULE.

ABERDEEN MARKET COMPANY.

Provisional Order to provide for the registration of the Aberdeen Market Company as a limited Company under the Companies (Consolidation) Act 1908 and to repeal the Act relating to the Company from the date of such registration and for other purposes.

WHEREAS by the Act (Local and Personal) passed in the second and third year of the reign of Her late Majesty Queen Victoria chapter sixty-four (in this Order called "the Act of 1839") the Aberdeen Market Company (in this Order called "the Company") was incorporated with power to erect establish and maintain a new market in the city of Aberdeen and to provide suitable approaches thereto and with power to ask demand recover receive and take the rents tolls stallages and sums of money specified in the said Act and with a capital of fifty thousand pounds divided into fifty thousand shares of one pound each and with power to borrow any sum of money not exceeding in the whole the sum of twenty thousand pounds:

And whereas the Company erected and established the said market and has maintained and carried on the same under the provisions of the Act of 1839:

And whereas the capital of the Company at present issued consists of twenty-five thousand fully paid shares of one pound each now held by the members of the Company:

And whereas with a view to extending the objects and operations of the Company it is intended to register the Company as a limited company under the Companies (Consolidation) Act 1908:

And whereas the memorandum and articles of association set forth in the schedule to this Order have been approved by the Company in general meeting:

And whereas it is expedient to repeal the Act of 1839 as from the date of such registration as by this Order provided and to enact that the said memorandum and articles of association shall be the memorandum and articles of association of the Company:

[2 & 3 GEO. 5.] *Aberdeen Market Company Order* [Ch. xxi.]
Confirmation Act, 1912.

And whereas it is expedient that the other provisions in this Order contained should be made: A.D. 1912.

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899:

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows:—

1. This Order may be cited as the Aberdeen Market Company Order 1912 and shall come into operation on the date of the passing of the Act confirming the same. Short title and commencement.

2. On and from the date of registration of the Company under the Companies (Consolidation) Act 1908 the Company shall continue incorporated by the name of "The Aberdeen Market Company Limited" and the Act of 1839 shall be repealed without prejudice to anything done or suffered thereunder. Repeal of Act of 1839.

3. On and from the date of registration of the Company under the Companies (Consolidation) Act 1908 the memorandum and articles of association of which a copy is set out in the schedule to this Order shall subject to the provisions of the said Companies Act be the memorandum and articles of association of the Company in substitution for the provisions of the Act of 1839. Substitution of memorandum and articles of association in schedule for Act of 1839.

4.—(1) Every member of the Company shall receive in substitution for every share of one pound held by him in the capital of the Company immediately before its registration under the said Companies Act one of the one pound shares (credited as fully paid) into which the capital of the Company is divided by the memorandum of association scheduled to this Order. Vesting of shares in members of Company.

(2) Substituted shares shall be subject and liable to the same trusts powers provisions declarations agreements charges liens and incumbrances as immediately before such registration as aforesaid affected the corresponding old shares respectively and every deed agreement or other instrument and every testamentary or other disposition shall take effect with reference to the whole or a proportionate part of the substituted shares as the case may be.

[Ch. xxi.] *Aberdeen Market Company Order* [2 & 3 GEO. 5.]
Confirmation Act, 1912.

A.D. 1912.

(3) The directors of the Company shall issue or cause to be issued certificates of the said substituted shares under such conditions as to evidence of title or otherwise in regard to the old shares as the Company may determine.

Transfer of
property to
Company.

5. All property heritable and moveable real and personal of every description and wheresoever situated and all interest in and right to such property and all contracts leases agreements debts obligations and actions belonging to or vested in the Company at the date of its registration under the said Companies Act shall on registration pass to and vest in the Company as incorporated under that Act.

Registration
not to affect
obligations
incurred
previously
to registra-
tion.

6. The registration of the Company in pursuance of the said Companies Act and the change of the name of the Company shall not affect or prejudice the liability of the Company to have enforced against it or its right to enforce any debt or obligation incurred or any contract or deed entered into by to with or on behalf of the Company previously to such registration.

Continu-
ance of
existing
actions.

7. Notwithstanding such repeal as aforesaid and the change of name of the Company or any other provisions of this Order all such actions and other legal proceedings as may at the time of the registration of the Company have been commenced by or against the Company may be continued in the same manner as if such registration had not taken place.

Copy of
Order to be
registered.

8.—(1) The Company shall deliver to the Registrar of Joint Stock Companies in Scotland a printed copy of the Act confirming this Order and he shall retain and register the same and if such copy is not so delivered within three months from the passing of the Act confirming this Order the Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the Company who knowingly and wilfully authorises such default shall incur the like penalty Every penalty under this section shall be recoverable summarily.

(2) There shall be paid to the registrar by the Company on such copy being registered the like fee as is for the time being payable under the Companies (Consolidation) Act 1908 on registration of any document other than the memorandum or

the abstract required to be filed with the registrar by a receiver or manager or the statement required to be sent to the registrar by the liquidator in a winding-up in England. A.D. 1912.

9. Nothing in this Order or the schedule thereto shall be deemed to exempt the Company from the provisions of any local or general Act now in force or which shall be passed during the present or any future session of Parliament relating to the objects of the Company. Local and general Acts to apply.

10. All costs charges and expenses of and incidental to the preparing for obtaining and confirming of this Order or otherwise in relation thereto shall be paid by the Company. Costs of Order.

The SCHEDULE referred to in the foregoing Order.

MEMORANDUM OF ASSOCIATION OF THE ABERDEEN MARKET
COMPANY LIMITED.

1. The name of the Company is the Aberdeen Market Company Limited.
2. The registered office of the Company will be situate in Scotland.
3. The objects of the Company are—
 - (1) To carry on the business and undertaking of the Aberdeen Market Company in Market Street Hadden Street Green and East Green in the city and county of Aberdeen and to develop the said business and undertaking in all its branches:
 - (2) To carry on all or any of the businesses of refrigeration and cold storage producers of low temperatures in warehouses warehousemen bonded warehouse proprietors dealers in and producers manufacturers importers and exporters of all kinds of provisions wares and merchandise ice tobacco wines spirits beer and other liquors and beverages whether alcoholic or non-alcoholic and manufacturers of and dealers in all kinds of commodities that may be conveniently used in connection with any of the aforesaid businesses:
 - (3) To hold the market house of the Company and the vaults owned in connection therewith and to use the shops vaults stands benches cellars and other conveniences in or possessed along therewith for the foresaid purposes and to let rent and hire any such shops and others for such periods as may be arranged and to recover

[Ch. xxi.] *Aberdeen Market Company Order* [2 & 3 GEO. 5.]
Confirmation Act, 1912.

A.D. 1912.

all rents tolls stallages or sums of money which shall from time to time be fixed for the use of the same:

- (4) To fit up use employ and hold the buildings of the Company or any part thereof for the purposes of a fair mart exchange refreshment rooms assembly rooms concert rooms theatres music halls and places of entertainment and to let rent and hire the same to any person company or corporation for any such purpose:
- (5) To maintain uphold repair improve alter renew add to and develop the heritable property of the Company and to make such alterations on the division arrangement and appropriation of the market buildings and heritages and such repairs amendments and alterations of or in the shops erections and buildings for the time being therein and of or in the vaults and cellars for the time being under the same or possessed in connexion therewith and generally to do and perform all such acts and deeds as shall appear to the directors to be necessary or useful for the preservation support and continuance thereof:
- (6) To borrow money and to issue bonds debentures debenture stock or other obligations whether perpetual or redeemable payable to the bearer or otherwise and for the purpose of securing borrowed money and interest thereon or for securing any obligations of the Company or for any other purposes of the Company to mortgage or charge the whole or any part of its assets present or to be acquired and its undertaking:
- (7) To invest the moneys of the Company in any way it may think fit and to acquire and hold any real or personal heritable or moveable property either for facilitating the carrying on of any business of the Company or as an investment of its funds and to deal with and dispose of such property:
- (8) To draw accept endorse discount execute and issue bills of exchange promissory notes debentures bills of lading and other negotiable or transferable instruments or securities:
- (9) Generally to purchase take on hire lease exchange or otherwise acquire any real or personal property rights or privileges which the Company may think necessary or convenient with reference to any of these objects or capable of being profitably dealt with in connection with any of the Company's property or rights for the time being:

- (10) To enter into partnership or into any arrangement for sharing profits union of interests joint adventure or co-operation with any company firm or person carrying on or proposing to carry on any business within the objects of the Company and to acquire and hold shares stock or securities of any such company and to subsidise or otherwise assist any such company firm or person : A.D. 1912.
- (11) To establish or promote or concur in establishing or promoting any other company whose objects shall include the acquisition and taking over of all or any of the assets and liabilities or shall be in any manner calculated to advance directly or indirectly the objects or interests of the Company and to acquire and hold shares stock and securities of and guarantee the payment of any securities issued by or any other obligation of any such company :
- (12) To sell or transfer the whole or any part or branch of the market house and of the business property and undertaking of the Company for such consideration as the Company may think fit and in particular for cash or shares stock debentures or securities of any company formed or to be formed in the United Kingdom or elsewhere whose objects are or include objects similar to any of those of the Company :
- (13) From time to time to subscribe or contribute to any charitable benevolent or useful institution or object to support or contribute towards the expense of supporting any Bill in Parliament or Provisional Order or to any other purpose which may seem expedient in the interests of the Company and to oppose or contribute towards the expense of opposing any Bill in Parliament Provisional Order or any proceedings and applications which may be deemed to be prejudicial to the interests of the Company :
- (14) To do all such other things as may seem to the Company to be incidental or conducive to the attainment of the objects named or any of them.

4. The liability of the members is limited.

5. The capital of the Company is twenty-five thousand pounds divided into twenty-five thousand shares of one pound each with power to increase or reduce the same and to divide the same into several classes and to attach thereto respectively any preferential deferred qualified or special rights privileges or conditions.

[Ch. xxi.] *Aberdeen Market Company Order* [2 & 3 GEO. 5.]
Confirmation Act, 1912.

A.D. 1912.

The Companies (Consolidation) Act 1908.

Company limited by shares.

ARTICLES OF ASSOCIATION OF THE ABERDEEN MARKET COMPANY
LIMITED.

Table A.

1. The regulations contained in Table A shall not apply to the Company.

Interpretation.

2. In these presents unless there be something in the subject or context inconsistent therewith—

“The Company” means the Aberdeen Market Company Limited ;

“The statutes” means the Companies (Consolidation) Act 1908 and every other Act for the time being in force concerning joint stock companies and affecting the Company ;

“The office” means the registered office of the Company ;

“Dividend” includes bonus ;

“Month” means calendar month ;

“In writing” or “written” includes printing lithographing type-writing and any other means of representing or reproducing words in visible form ;

Words importing the singular number include the plural number and vice versâ ;

Words importing the masculine gender include the feminine gender ;

Words importing persons include corporations and firms ;

Subject as aforesaid any words defined in the statutes shall if not inconsistent with the subject or context bear the same meaning in these articles as in the statutes.

Office.

3. The office shall be at such place in Scotland as the directors shall from time to time appoint.

Shares.

4. No part of the funds of the Company shall be employed in the purchase of the Company's shares.

5. If two or more persons are registered as joint holders of any share any one of them may give effectual receipts for any dividend or other money payable in respect of the share.

6. The Company shall be entitled to treat the registered holder of a share as the absolute owner thereof and accordingly shall not be bound to recognise any equitable or other claim to or interest in any such share on the part of any other person save as herein provided. A.D. 1912.

7. Certificates of title to shares shall be issued under the common seal of the Company and signed by two directors and countersigned by the secretary or some other person appointed by the directors.

8. Every certificate shall specify the denoting numbers of the shares in respect of which it is issued and the amount paid up thereon.

9. Every member shall be entitled to one certificate for the shares registered in his name provided that in the case of joint holders the Company shall not be bound to issue more than one certificate to all the joint holders and delivery of that certificate to any one of them shall be a sufficient delivery to all.

10. If any certificate be worn out or defaced the directors may on production thereof order it to be cancelled and may issue a new certificate in its place and if any certificate be lost or destroyed they may on proof thereof to their satisfaction and on receiving such indemnity as they deem adequate and payment of any expenses incidental to the investigation by the Company of the evidence of such loss or destruction issue a new certificate in lieu thereof to the party entitled to such lost or destroyed certificate.

11. The sum of one shilling or such smaller sum as the directors may determine shall be paid to the Company for every certificate issued under the last preceding clause.

Calls on Shares.

12. In the event of the Company resolving at any time to increase its share capital as provided in Articles 36 and 37 hereof the directors may subject to the regulations of these articles and to any conditions of allotment from time to time make such calls as they think fit upon the members in respect of all moneys unpaid on their shares and each member shall pay the amount of every call so made on him to the person and at the time and place appointed by the directors.

13. A call shall be deemed to have been made at the time when the resolution of the directors authorising such call shall have been passed.

14. The joint holders of a share shall be jointly and severally liable to pay all calls in respect thereof.

15. Fourteen days' notice at the least of any such call shall be given specifying the time and place of payment and to whom payment shall be made.

[Ch. xxi.] *Aberdeen Market Company Order* [2 & 3 GEO. 5.]
Confirmation Act, 1912.

A.D. 1912.

16. If the sum payable in respect of the call on any share be not paid on or before the day appointed for payment thereof the holder for the time being shall pay interest on the amount of the call at the rate of ten per centum per annum from the day appointed for payment until the time of actual payment provided always that the directors shall have it in their power to remit such interest or any part thereof.

17. A member shall not be entitled to receive any dividend or bonus or to be present or vote at any meeting or upon a poll or to exercise any privilege as a member until he has paid all calls for the time being due and payable on every share held by him whether alone or jointly with any other person together with the interest and expenses if any.

18. Any sum which by the terms of allotment of a share is made payable on allotment or at any fixed date shall for the purposes of these articles be deemed to be a call duly made and payable on the date fixed for payment and in case of non-payment the provisions of these articles as to payment of interest and expenses forfeiture and the like shall apply as if the same were a call duly made and notified as provided by these articles.

19. The directors may receive from any member willing to advance the same and upon such terms and conditions as they think fit all or any part of the moneys unpaid upon the shares held by such member beyond the sums actually called up thereon and in particular such moneys may be received upon the terms that interest shall be paid thereon or on so much thereof as exceeds the amount for the time being called up on the shares in respect of which the advance has been made. When money is paid up in advance of calls on the footing that the same shall carry interest such money shall not while carrying interest confer a right to participate in profits.

Transfer and Transmission of Shares.

20. The person appearing in the register of members for the time being to be the holder of any shares shall be entitled subject to the qualifications hereinafter expressed but not otherwise to sell and transfer such shares to any person not being a minor lunatic bankrupt insolvent or otherwise under legal disability.

21. The instrument of transfer of a share shall be in common form and shall be signed in presence of one witness by both transferor and transferee and the transferor shall be deemed to remain a holder of such share until the name of the transferee is entered in the register in respect thereof. The transfer must be left at the office of the Company accompanied by the certificate of the shares to be

[2 & 3 GEO. 5.] *Aberdeen Market Company Order* [Ch. xxi.]
Confirmation Act, 1912.

transferred and such other evidence (if any) as the directors may require to prove the title of the intending transferor. A.D. 1912.

22. The directors may without assigning any reason refuse to register the transfer of any share not fully paid up to any person of whom they shall not approve as transferee.

23. A fee not exceeding two shillings and sixpence for the registration of each transfer of shares may be charged.

24. On the death of any shareholder the survivors or survivor of those registered as joint holders with him where he was a joint holder and the executors or administrators of the deceased where he was a sole holder shall be the only persons recognised by the Company as having any title to his shares but nothing herein contained shall release the estate of a deceased joint holder from any liability existing at the time of his death in respect of any share jointly held by him.

25. Any person becoming entitled to a share in consequence of the death or bankruptcy of any member may subject to the provisions hereinafter contained and on production of such evidence of title as the directors require and subject as hereinafter provided either be registered himself as holder of the share or elect to have some person nominated by him registered as the transferee thereof.

26. If the person so becoming entitled to a share shall elect to be registered himself he shall deliver or send to the Company a notice in writing signed by him stating that he so elects. For all purposes relating to the registration of transfers of shares such notices shall be deemed to be a transfer and the directors shall have the same power of refusing to give effect thereto by registration as if the event upon which the transmission took place had not occurred and the notice were a transfer executed by the person from whom the title by transmission is derived.

27. If the person so becoming entitled shall elect to have his nominee as aforesaid registered he shall testify his election by executing to his nominee a transfer of such share. The directors shall have in respect of transfers so executed the same power of refusing registration as if the event upon which the transmission took place had not occurred and the transfer were a transfer executed by the person from whom the title by transmission is derived.

28. A person entitled to a share by transmission shall be entitled to receive and discharge any dividends bonuses or other moneys payable in respect of the share but he shall not be entitled to receive notices of or to attend or vote at meetings of the Company or save as aforesaid to any of the rights or privileges of a member unless and until he is registered as a member in respect of the share. A fee not exceeding two shillings and sixpence may be charged on the

[Ch. xxi.] *Aberdeen Market Company Order* [2 & 3 Geo. 5.]
Confirmation Act, 1912.

A.D. 1912. intimation of any transmission of shares or of the marriage of any female shareholder or the death or resignation of any joint holder or the intimation of any power of attorney.

Forfeiture of Shares.

29. If any shareholder fail to pay the whole or any part of any call on or before the day appointed for the payment thereof the directors may at any time thereafter while the call or any part thereof remains unpaid serve a notice on such member requiring him to pay the same together with any interest that may have accrued and all expenses that may have been incurred by the Company by reason of such non-payment. Such service shall be sufficiently proved by proving that the envelope containing the notice was addressed to the shareholder at his registered address and posted.

30. The notice shall name a further day (not being less than fourteen days from the date of the notice) and a place or places on and at which said call or the part thereof remaining unpaid and such interest and expenses as aforesaid are to be paid. The notice shall also state that in the event of non-payment at or before the time and at the place appointed the shares in respect of which the call was made will be liable to be forfeited.

31. If the requisitions of any such notice as aforesaid are not complied with any share in respect of which such notice has been given may at any time thereafter before payment of all calls interest and expenses due in respect thereof has been made be forfeited by a resolution of the directors to that effect. Such forfeiture shall include all dividends declared in respect of the forfeited shares and not actually paid before the forfeiture.

32. The directors may at any time before any share forfeited shall have been sold re-allotted or otherwise disposed of annul the forfeiture thereof upon such conditions as they think fit.

33. Every share which shall be forfeited shall thereupon become the property of the Company and may be disposed of without judicial authority in such manner as the directors shall think fit.

34. A shareholder whose shares have been forfeited shall notwithstanding be liable to pay to the Company all calls interest and expenses owing upon or in respect of such shares at the time of the forfeiture in the same manner in all respects as if the shares had not been forfeited together with interest thereon from the time of forfeiture until payment at the rate of ten per centum per annum.

35. A statutory declaration in writing that the declarant is a director of the Company and that a certain share has been duly forfeited in pursuance of these articles and stating the time when it

was forfeited shall as against all persons claiming to be entitled to the share be conclusive evidence of the facts therein stated and such declaration together with a certificate of proprietorship of the share under seal delivered to a purchaser or allottee thereof shall constitute a good title to the share and the new holder thereof shall be discharged from all calls made prior to such purchase or allotment and shall not be bound to see to the application of the purchase money if any nor shall his title to the share be affected by any omission irregularity or invalidity in or relating to or connected with the proceedings in reference to the forfeiture sale or disposal of the share. A.D. 1912.

Capital.

36. The Company may from time to time by special resolution increase its share capital to the amount determined by such resolution and by such resolution determine the conditions on which such increase of share capital may be made and the new shares may be issued upon such terms and conditions and with such rights and privileges annexed thereto as by special resolution shall be determined and in default of any such resolution as the directors determine and in particular such shares may be issued with a preferential or deferred or qualified right to dividend or in the distribution of assets and with a special or without any right of voting. An increase of capital may take the form of a creation of ordinary and preference shares or of either of these classes of shares.

37. Subject to any direction to the contrary that may be given by the resolution which authorises the increase of capital all new shares shall be offered to the members in proportion or as nearly as may be to the existing shares held by them and on such terms as the directors may determine. Such offer shall be made by notice specifying the number of shares to which the member is entitled and limiting a time within which the offer if not accepted will be deemed to be declined and after the expiration of such time or on receipt of an intimation from the member to whom such notice is given that he declines to accept the shares offered the directors may dispose of them in such manner as they think most beneficial to the Company.

38. Except so far as otherwise provided by the conditions of issue any capital raised by the creation of new shares shall be considered part of the original share capital and shall be subject to the same provisions with reference to the payment of calls transfer and transmission forfeiture and otherwise as if it had been part of the original capital.

39. The Company may by special resolution—

- (A) Consolidate and divide its capital into shares of larger amount than its existing shares;
- (B) Subdivide any of its shares;

[Ch. xxi.] *Aberdeen Market Company Order* [2 & 3 GEO. 5.]
Confirmation Act, 1912.

A.D. 1912.

(c) Cancel any shares which at the date of the passing of the resolution have not been taken or agreed to be taken by any person;

(d) Reduce its capital in any manner and with and subject to any incident authorised and consent required by law.

Borrowing Powers.

40. The directors may from time to time at their discretion and on such terms as they think fit borrow money for the purposes of the Company and may grant security for money so borrowed by mortgaging pledging or charging the whole or any part of the property of the Company including its uncalled capital for the time being or otherwise as they think proper. The total amount of money to be so borrowed shall not without the sanction of a general meeting of the Company exceed the paid up capital of the Company for the time being.

General Meetings.

41. A general meeting of the Company shall be held in every year at such place and time as the directors may from time to time determine. These general meetings shall be called ordinary meetings. All other general meetings excepting the statutory meeting shall be called extraordinary meetings.

42. The directors may call an extraordinary meeting whenever they think fit.

43. Seven days' notice at least specifying the place day and hour of every general meeting of the Company and the general nature of any special business to be transacted shall be given in manner hereinafter mentioned to the members entitled to receive the same but the accidental omission to give any such notice to or the non-receipt of such notice by any member shall not invalidate any resolution passed or proceedings had at any such meeting.

44. When a special resolution is proposed to be passed the two meetings may be convened by one notice and the second meeting may be convened by such notice contingently on the proposed resolution being passed at the first meeting by the necessary majority.

45. All business shall be deemed special that is transacted at an extraordinary meeting. All business transacted at an ordinary meeting shall also be deemed special with the exception of sanctioning a dividend the consideration of the accounts and balance sheet and the ordinary reports of the directors and auditors the election of directors and other officers in the place of those retiring by rotation and the fixing of the remuneration of the directors and the auditors.

46. Any member entitled to be present and vote at a general meeting may submit any resolution to such meeting on condition only

[2 & 3 GEO. 5.] *Aberdeen Market Company Order* [Ch. xxi.]
Confirmation Act, 1912.

that he shall have served upon the Company a notice in writing signed by him containing the proposed resolution and stating his intention to submit it and that the time of his service shall be such that there shall be not less than four nor more than fourteen days intervening between the date when the notice is served or deemed to be served and the day appointed for the meeting. A.D. 1912.

47. No business shall be transacted at any general meeting except the declaration of a dividend unless a quorum is present when the meeting proceeds to business save as by these articles otherwise provided. Seven members personally present shall be a quorum except in the case provided for in the immediately succeeding article.

48. If within half an hour from the time appointed for the holding of a general meeting a quorum is not present the meeting if convened on the requisition of members shall be dissolved. In any other case it shall stand adjourned to the same day in the next week at the same time and place and if at such adjourned meeting a quorum is not present within fifteen minutes from the time appointed for holding the meeting the members present shall be a quorum.

49. The chairman with the consent of any meeting at which a quorum is present may adjourn the meeting from time to time and from place to place as the meeting shall determine. Whenever a meeting is adjourned for ten days or more notice of the adjourned meeting shall be given in the same manner as of an original meeting. Save as aforesaid the members shall not be entitled to any notice of an adjournment or of the business to be transacted at any adjourned meeting other than the business which might have been transacted at the meeting from which the adjournment took place.

50. The chairman of the board of directors shall preside at every general meeting but if there be no such chairman or if at any meeting he shall not be present within fifteen minutes after the time appointed for holding the same or shall be unwilling to act as chairman the members present shall choose some director or if no director be present or if all the directors present decline to take the chair they shall choose one of themselves to be chairman of the meeting.

51. At any general meeting a resolution put to the vote of the meeting shall be decided on a show of hands by a majority of those present and entitled to vote unless before or upon the declaration of the result of the show of hands a poll be demanded in writing by at least five members present in person and entitled to vote and unless a poll be so demanded a declaration by the chairman of the meeting that a resolution has been carried or has been carried by a particular majority or lost or not carried by a particular majority shall be conclusive and an entry to that effect in the minute book of the Company shall be conclusive evidence thereof without proof of the

[Ch. xxi.] *Aberdeen Market Company Order* [2 & 3 GEO. 5.]
Confirmation Act, 1912.

A.D. 1912. number or proportion of the votes recorded in favour of or against such resolution.

52. If a poll be demanded in manner aforesaid it shall be taken at such time and place and in such manner as the chairman shall direct and the result of the poll shall be deemed to be the resolution of the meeting at which the poll was demanded.

53. No poll shall be demanded on the election of a chairman of a meeting or on any question of adjournment.

54. In the case of an equality of votes either on a show of hands or at a poll the chairman of the meeting shall be entitled to a further or casting vote in addition to the vote or votes to which he may be entitled as a member.

55. The demand of a poll shall not prevent the continuance of a meeting for the transaction of any business other than the question on which a poll has been demanded.

Votes of Shareholders.

56. On a show of hands every shareholder shall have one vote only. In the case of a poll every shareholder shall have one vote in respect of each share held by him.

57. If any shareholder be a lunatic or idiot he may vote by his curator bonis or other legal curator and such guardian may give his vote either personally or by proxy.

58. If two or more persons are jointly entitled to a share then in voting upon any question the vote of the person whose name stands first in the register of members or his proxy shall be accepted to the exclusion of the votes of the other registered holders of the share.

59. Save as herein expressly provided no person other than a member duly registered who shall have paid everything for the time being due from him and payable to the Company in respect of his shares shall be entitled to be present or to vote on any question either personally or by proxy or as proxy for another member at any general meeting.

60. Votes may be given either personally or by proxy. On a show of hands a member present only by proxy shall have no vote but a proxy for a company or corporation may vote on a show of hands. No person who is not entitled to be present and vote in his own right shall act as a proxy except for a company or corporation.

61. Any company which is a member of the Company may by minute of its directors authorise any person to act as its representative at any meeting of the Company and such representative shall be entitled to exercise the same functions on behalf of the company

which he represents as if he had been an individual shareholder A.D. 1912.
including power when personally present to vote on a show of hands. —

62. The instrument appointing a proxy shall be in writing under the hand of the appointor or if such appointor is a corporation under their common seal if any and if none then under the hand of some officer duly authorised in that behalf.

63. The instrument appointing a proxy and the power of attorney or other authority if any under which it is signed or a notarially certified copy of such power or authority shall be deposited at the office at least forty-eight hours before the time appointed for holding the meeting or adjourned meeting at which the person named in such instrument proposes to vote otherwise the person so named shall not be entitled to vote in respect thereof.

64. An instrument appointing a proxy shall be in the following form or as near thereto as circumstances will admit:—

The Aberdeen Market Company Limited.

" I of
" being a member hereby appoint
" of or failing him
"
" of
" to vote for me and on my behalf at the general meeting of the
" Company to be held on the day of
" and at every adjournment thereof.
" As witness my hand this day of
" nineteen hundred and " "

or in such other form as the directors may from time to time approve and no attestation of the signature thereto shall be requisite.

65. The directors may at the cost of the Company issue stamped forms of proxy for use by the members with or without inserting therein the names of any of the directors.

Directors.

66. Until otherwise determined by the Company in general meeting the number of directors shall not be less than five nor more than eight The first directors shall be Peter Beveridge manufacturer Aberdeen James Booth Greig bank agent Laurencekirk James Duguid advocate Aberdeen Alexander Ledingham solicitor before the supreme courts Aberdeen Robert Burnett Civil Service tutor Aberdeen James Copland Glegg iron merchant Aberdeen George Hutcheson grain merchant Aberdeen and Alfred John Wood bank agent Aberdeen.

67. The directors may from time to time appoint any qualified person to be a director either to fill a casual vacancy or by way of

[Ch. xxi.] *Aberdeen Market Company Order* [2 & 3 GEO. 5.]
Confirmation Act, 1912.

A.D. 1912. addition to the board but so that the maximum number fixed as above shall not be thereby exceeded Any director appointed under this article shall hold office only until the ordinary general meeting following next after his appointment but shall then be eligible for re-election.

68. The qualification of a director shall be the holding in his own right alone and not jointly with any other person of fifty shares of the Company.

69. There shall be paid to the directors as remuneration for their services such sums as the Company may from time to time in general meeting determine The remuneration shall be divided amongst the directors as they shall determine.

70. If any director shall perform extra services or make special exertions for any of the purposes of the Company the Company may on the recommendation of the directors remunerate the director so doing either by a fixed sum or by a percentage of profits or otherwise as may be determined by the directors and such remuneration may be either in addition to or in substitution for his share in the remuneration above provided.

71. The office of a director shall be vacated—

- (A) If he cease to hold the requisite number of shares ;
- (B) If he become bankrupt or suspend payment or by reason of insolvency compound with his creditors ;
- (C) If he be declared lunatic or become of unsound mind ;
- (D) If he be concerned or participate in the profits of any contract with the Company but this provision shall not be held to apply by reason of his being a member of any company which has entered into any contracts or done any work for the Company ;
- (E) If he be removed by a resolution of the Company in general meeting ;
- (F) If by notice in writing to the Company he resign his office.

Rotation of Directors.

72. At the ordinary meeting in every year all the directors for the time being shall retire from office but shall be eligible for re-election and shall act as directors throughout the meeting at which they retire.

73. Subject as hereinafter provided the Company shall at the meeting at which the directors retire in manner aforesaid fill the vacated offices by electing persons thereto.

74. No person not being a director retiring at the meeting shall unless recommended by the directors for election be eligible for

[2 & 3 GEO. 5.] *Aberdeen Market Company Order* [Ch. xxi.]
Confirmation Act, 1912.

election to the office of director at any general meeting unless at least five days before the day appointed for the meeting there have been given to the secretary notice in writing by some member duly qualified to be present and to vote at the meeting for which such notice is given of his intention to propose such person for election and also notice in writing signed by the person to be proposed of his willingness to be elected. A.D. 1912.

75. Subject as hereinafter provided if at any meeting at which an election of directors ought to take place no directors are appointed the retiring directors or such of them as may be willing shall continue in office until the ordinary meeting in the next year and so on from year to year until other directors are appointed.

76. The Company may from time to time in general meeting increase or reduce the number of directors.

77. The Company may by extraordinary resolution remove any director before the expiration of his period of office and may by ordinary resolution appoint another member in his stead but any person so appointed shall retain his office so long only as the director in whose place he is appointed would have held the same if he had not been removed.

Powers of Directors.

78. The business of the Company shall be managed by the directors who may exercise all such powers of the Company and do on behalf of the Company all such acts as may be exercised and done by the Company and as are not by the statutes or by these articles required to be exercised or done by the Company in general meeting. Said actings shall nevertheless be subject to any regulations of these articles to the provisions of the statutes and to such regulations being not inconsistent with the aforesaid regulations or with such provisions as may be prescribed by the Company in general meeting. No regulation made by the Company in general meeting shall invalidate any prior act of the directors which would have been valid if such regulation had not been made.

79. The continuing directors at any time may act notwithstanding any vacancy in their body. Provided always that in case the directors shall at any time be reduced in number to less than five it shall be lawful for them to act as directors for the purpose of filling up vacancies in their body but not for any other purpose.

80. The seal of the Company shall not be affixed to any instrument unless and until it shall have been signed by at least two directors and the secretary.

81. All moneys bills and notes belonging to the Company shall be paid to or deposited with the Company's bankers in an account to be opened in the name of the Company. Cheques on the Company's

[Ch. xxi.] *Aberdeen Market Company Order* [2 & 3 GEO. 5.]
Confirmation Act, 1912.

A.D. 1912. bankers unless and until the directors shall otherwise from time to time resolve shall be signed by one director and the secretary.

Proceedings of Directors.

82. The directors or any committee of directors may meet together for the despatch of business and they may adjourn and otherwise regulate their meetings as they think fit and determine the quorum necessary for the transaction of business. Until otherwise determined three shall be a quorum. Questions arising at any meeting shall be decided by a majority of votes. In case of an equality of votes the chairman shall have a second or casting vote.

83. A director may and on the request of a director the secretary shall at any time summon a meeting of the directors by notice served upon the several members of the board. A director who is absent from the United Kingdom shall not be entitled to notice of any meeting of directors.

84. The directors or any committee of directors may from time to time elect a chairman who shall preside at meetings but if no such chairman be elected or if at any meeting the chairman be not present within five minutes after the time appointed for holding the same a substitute chairman for that meeting shall be appointed by such meeting from among the directors present.

85. The directors may delegate any of their powers other than the powers to borrow and make calls to committees consisting of such members of their body as they think fit. Any committee so formed shall in the exercise of the powers so delegated conform to any regulations that may be imposed upon them by the board. Until otherwise determined two shall be a quorum of any such committee.

Dividends and Reserve Fund.

86. The directors may with the sanction of a general meeting from time to time declare a dividend but no such dividend shall be payable otherwise than out of profits arising from the business of the Company. In or about the middle of any financial year the directors may if they think fit declare and pay an interim dividend. No larger dividend shall at any time be declared than is recommended by the directors.

87. The directors may before recommending any dividend set aside out of the profits of the Company such sum as they think proper as a reserve fund or retain any part of the profits of the Company as an undivided balance of revenue without specially setting the same apart which reserve fund and undivided balance shall both at the discretion of the directors be applicable for meeting contingencies the expenses incident to borrowing or securing payment of special dividends or equalising dividends or be used as a sinking fund to pay off debt of the

Company, or for distribution by way of bonus among the members of the Company for the time being on such terms and in such manner as the Company in general meeting shall from time to time determine and the directors may divide the reserve fund into separate funds for special purposes and may invest the sums from time to time set apart as a reserve fund in the business of the Company without being bound to keep the same separate from the other assets. A.D. 1912.

88. The directors may deduct from any dividend bonus or other moneys payable to any member in respect of any shares held by him any sums of money due and payable by him to the Company.

89. A transfer of a share shall not carry the right to any dividend declared in respect thereof before the transfer has been registered.

90. Unless otherwise directed any dividend instalment of dividend bonus or interest in respect of any share may be paid by cheque or warrant payable to the order of the member entitled thereto or (in the case of joint holders) of that member whose name stands first on the register in respect of the joint holding.

91. Every such cheque or warrant may be sent by post to the registered address of the member entitled thereto and the receipt of the person whose name appears on the register of members as the owner of any share or in the case of joint holders of any one of such joint holders shall be a good discharge to the Company for all dividends bonuses or other payments made in respect of such share.

92. No unpaid dividend bonus or interest shall bear interest against the Company.

Accounts.

93. The directors shall cause true accounts to be kept of the sums of money received and expended by the Company and the matter in respect of which such receipt and expenditure takes place and of the assets and liabilities of the Company. The books of account shall be kept at the registered office of the Company or at such other place or places as the directors shall think fit and shall always be open to the inspection of the directors.

94. The directors shall from time to time determine whether and to what extent and at what times and places and under what conditions the accounts and books of the Company or any of them shall be open to the inspection of members and no member (not being a director) shall have any right of inspecting any account or book or document of the Company except as conferred by statute or authorised by the directors or by a resolution of the Company in general meeting.

95. Once at least in each year the directors shall lay before the Company in general meeting a profit and loss account for the period

[Ch. xxi.] *Aberdeen Market Company Order* [2 & 3 GEO. 5.]
Confirmation Act, 1912.

A.D. 1912. since the preceding account made up to a date not more than three months before such meeting.

Audit.

96. Auditors shall be appointed and their duties regulated in accordance with sections one hundred and twelve and one hundred and thirteen of the Companies (Consolidation) Act 1908 or any statutory modification thereof for the time being in force.

Notices.

97. A notice may be served by the Company on any member either personally or by sending it through the post in a prepaid letter addressed to such member at his registered address.

98. All notices and accounts directed to be given or sent to the members shall with respect to any share to which persons are jointly entitled be given or sent to whichever of such persons is named first in the register of members and shall be sufficient notice for all the holders of such shares.

99. Any member described in the register of members by an address not within the United Kingdom who shall from time to time give to the Company an address within the United Kingdom at which notices may be served upon him shall be entitled to have notices served upon him at such address but save as aforesaid no member other than a registered member described in the register of members by an address within the United Kingdom shall be entitled to receive any notice from the Company.

100. Any notice if served by post shall be deemed to have been served on the day following that on which the letter containing the same is put into the post and in proving such service it shall be sufficient to prove that the letter containing the notice was properly addressed and put into the post office as a prepaid letter.

Winding-up.

101. If the Company shall be wound up the liquidators (whether voluntary or official) may with the sanction of an extraordinary resolution divide among the contributories in specie any part of the assets of the Company and may with the like sanction vest any part of the assets of the Company in trustees upon such trusts for the benefit of the contributories as the liquidators with the like sanction shall think fit.

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